

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

COSCO SHIPPING LINES Co., LTD., *Respondent and
Third-Party Complainant*

v.

SAMSUNG ELECTRONICS COMPANY, LTD.; SAMSUNG SDS
GLOBAL SCL ASIA PACIFIC PTE. LTD.; AND SAMSUNG
ELECTRONICS LOGITECH COMPANY, LIMITED,
Third-Party Respondents.

DOCKET NO. 24-16

Served: June 5, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge.*

ORDER ON DOCUMENT PRODUCTION

On Friday, May 29, 2026, Respondent COSCO Shipping Lines Co., Ltd. (“COSCO”), sent an email to the undersigned, copying counsel for Complainant Samsung Electronics America, Inc. (“SEA”), requesting a status conference to discuss a document production issue.

On Monday, June 1, 2026, SEA sent a related email to the undersigned, copying counsel for COSCO, also requesting a status conference to discuss the same issue, as well as other discovery issues.

The issue raised by the parties involves the inadvertent production of documents by SEA to COSCO. SEA asserts that the documents are privileged and should be returned to it immediately, and COSCO asserts that they are not, and they want to use them in upcoming depositions. These documents (or at least some of them) were inadvertently produced in another case, *Samsung Electronics America, Inc. v. HMM Co., Ltd. f/k/a Hyundai merchant Marine Co., Ltd.*, Dkt. No. 24-23, and there, the Administrative Law Judge (“ALJ”) ordered the parties to email the documents to him for an *in-camera* review, and then simultaneously submit their arguments regarding the privilege issue. This approach seems most efficient and will be implemented here. Until the parties provide the documents for an *in-camera* review and commit their arguments to writing, a status conference is premature.

When a situation is not covered by a specific Commission Rule, as here, and “to the extent that they are consistent with sound administrative practice[.]” the Federal Rules of Civil Procedure (“FRCP”) will be followed. 46 C.F.R. § 502.12. Consistent with sound administrative

practice, FRCP 26(b)(5)(B) is instructional and applies when privileged or protected material is inadvertently produced:

Information Produced. If information produced in discovery is subject to a claim of privilege or of protection as trial-preparation material, the party making the claim may notify any party that received the information of the claim and the basis for it. After being notified, a party must promptly return, sequester, or destroy the specified information and any copies it has; must not use or disclose the information until the claim is resolved; must take reasonable steps to retrieve the information if the party disclosed it before being notified; and may promptly present the information to the court under seal for a determination of the claim. The producing party must preserve the information until the claim is resolved.

The parties should address their efforts to comply with FRCP 26 (b)(5)(B) in their memoranda.¹

In terms of the arguments to be addressed in their respective memoranda, the following guidance is provided. SEA must first identify what privilege it asserts for each document, and whether a privilege log has been provided or prepared. If SEA claims that some or all the documents should be withheld because they were prepared in anticipation of litigation, it should support that contention with evidence or declarations, such as dates counsel was retained or consulted, or that in-house legal counsel initiated the compilation or creation of documents for purposes of litigation. It is not sufficient that the documents were later used in litigation if they were not compiled in anticipation of litigation. *See Harleysville Insurance Company v. Holding Funeral Home, Inc.*, 2017 WL 4368617 (W.D. Virginia 2017), *5, quoting *Solis v. Food Emp'rs Labor Relations Ass'n*, 644 F.3d 221, 231 (4th Cir. 2011) (“[T]he work product doctrine belongs to the attorney and confers a qualified privilege on documents prepared by an attorney in anticipation of litigation.”).

If COSCO asserts that neither attorney-client privilege or work-product protection apply to some or all the material, it should cite to evidence that supports its position (e.g., a document was created before the parties engaged in pre-litigation discussions), as well as case authority to support its arguments. If COSCO is advancing the argument of “substantial need,” it must provide case support and discussion as to why it cannot obtain some or all the information through its own shipment tracking systems. COSCO appears to argue that the common interest privilege also does not apply, so the parties also should address their respective positions regarding any disclosures made to other Samsung entities. The parties are cautioned that string cites are not useful and are discouraged.

As I have stated before, I would prefer that the parties cooperatively resolve this and their other on-going discovery issue without resorting to extensive motions practice. If the parties are unable to resolve this current issue to their mutual satisfaction, they must simultaneously submit

¹ While Commission Rule 204 allows consideration of the Federal Rules of Evidence, the parties specifically state in their Protective Order that FRE 502 (b) does not apply. 46 C.F.R. § 502.204; Protective Order at 10. FRE 502 (b) addresses when inadvertent disclosure does not operate as a waiver.

memoranda for my consideration as ordered below. No motions are to accompany the memoranda, and other outstanding discovery issues should not be addressed.

Order

Based on the above, it is hereby

ORDERED that the parties email the challenged documents to me for *in-camera* review at lcrovella@FMC.gov by close of business on June 8, 2026. It is

FURTHER ORDERED that at 5 p.m. EDT, June 12, 2026, the parties each submit a memorandum not to exceed 10 pages, explaining their respective positions regarding the documents at issue, and addressing privilege and protection consistent with the above. Each party may submit a confidential memorandum, and each must also submit a public version redacting identification of and references to the contents of specific documents, but not the arguments supporting the party's position.

In an unrelated matter, the Secretary is requested to revert to the original caption in this proceeding, identifying COSCO only as Respondent, and eliminating the third-party proceeding and third-party respondents' names from the caption of the proceeding.



Linda S. Harris Crovella
Administrative Law Judge